

24STCV30123 24STCV30123

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-08-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C08%2F25%2F2026

Source SHA-256: eee2ffd936ac9b1f11885eae5850c31bb65543823044f6dade87db4832ebca31

Case Number: 24STCV30123 Hearing Date: August 25, 2026 Dept: 529

ANGEL VENEGAS GOMEZ V. FCA US, LLC., ET

AL.

PLAINTIFF'S MOTION TO COMPEL DEFENDANT'S COMPLIANCE WITH
DEFENDANT'S OWN RESPONSE TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS,
SET ONE AND DEMAND FOR MANDATORY MONETARY SANCTIONS

Date of Hearing: August

25, 2026 Trial Date: September 21, 2026

Department: 529 Case No.: 24STCV30123

Moving Party: Plaintiff

Angel Venegas Gomez

Responding Party: Defendant FCA US, LLC

Meet and Confer: Yes.

BACKGROUND

On November 15, 2024, Plaintiff Angel

Venegas Gomez filed a complaint against Defendant FCA US LLC and Los Angeles

Chrysler Dodge Jeep Ram for various violations of the Song-Beverly Consumer

Warranty Act along with negligent repair and fraudulent inducement –

concealment.

[TENTATIVE] RULING

Plaintiff's

Motion to Compel Defendant's Compliance with Defendant's Own Response to Plaintiff's Request for Production of Documents, Set One and Demand for Mandatory Monetary Sanctions is DENIED.

DISCUSSION

Plaintiff

Angel Venegas Gomez moves for an order compelling Defendant FCA US, LLC's compliance with Defendant's discovery responses to Plaintiff's Requests for Production of Documents, Set One. Plaintiff makes the motion on the grounds that Defendant has abused the discovery process and knowingly failed to comply with its own responses to Plaintiff's Request for Production of Documents, Set One by failing to produce a single document responsive to Plaintiff's RFP, Set One despite explicitly promising to produce such. Plaintiff seeks monetary sanctions against Defendant in the amount of \$1,155.00.

A motion to

compel further responses to a demand for inspection or production of documents ("RFP") may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (CCP § 2031.310(c).) A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (See CCP § 2031.310(b)(1).)

Plaintiff

argues Defendant has responded to a demand for inspection by promising to produce documents responsive to Plaintiff's RFP, Set One but has failed to permit the inspection by failing to produce a single document responsive to Plaintiff's requests. On February 21, 2025, Plaintiff electronically served their RFP, Set One. (Rucker Decl. ¶4, Exh. 1.) On March 25, 2025, Defendant served its Responses. (Rucker Decl. ¶5, Exh. 2.) As part of their response, Defendant promised production of documents responsive to Request Nos. 1, 2, 4, 5, 6, 7, 8, 10, 14, 89, 90, 91, 92, 93, 94, 95, 96, 97, 99, 100, and 106. (Rucker Decl. ¶5.) Despite this, Plaintiff maintains Defendant has not produced a single document responsive to Plaintiff's RFP, Set One. (Rucker Decl. ¶6.) Plaintiff tried to meet and confer regarding the discovery, but FCA has yet to respond.

(Rucker Decl. ¶12.)

In

opposition, FCA argues on April 8, 2025, FCA sent Plaintiff's counsel a written service letter by email expressly advising "below is a link to Defendant FCA US LLC's Initial RFP Document Production with reference to the above-captioned action," and provided a SharePoint link identified as "Gomez - Initial RFP Document Production Link" containing the production. (Fonseca Decl. Exh B.) As a result, FCA has made the production and the court "cannot compel FCA to perform an act it completed long before this Motion was filed."

Plaintiff has

not filed a Reply. Counsel for FCA has filed a declaration, under penalty of perjury, that the documents were produced on April 8, 2025. (Fonseca Decl. ¶¶4-8, Exh. B.) As such, the court DENIES the motion.

Sanctions

Plaintiff

seeks \$1,155.00 in sanctions against Defendant as a result of having to bring this motion. As the court has denied the motion, the court DENIES the request for monetary sanctions. The court notes that this motion could have been avoided entirely by counsel engaging in a good faith meet and confer. Both sides are admonished that in the future they must communicate directly in person or by phone or videoconference prior to bringing a dispute such as this before the court.